

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	07-07-2026 11:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	07-07-2026 11:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Himachal Pradesh
विभाग का नाम/Department Name	M.p.p. And Power Department Himachal Pradesh
संगठन का नाम/Organisation Name	N/a
कार्यालय का नाम/Office Name	Shimla
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	buycon21.mpppdhp.hp@gembuyer.in
कुल मात्रा/Total Quantity	18
वस्तु श्रेणी /Item Category	Filter Cartridge (Q3)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	3 Year (s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Past Performance,Certificate (Requested in ATC),Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)

बिड विवरण/Bid Details	
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
विगत प्रदर्शन / Past Performance	80 %
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/ Type of Bid	Single Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय / Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/ Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	11000

ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने हैं। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and

Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

Dy. General Manager (Electrical)
Integrated Kashang HEP, Stage-1, HPPCL, Reckong Peo, Distt. Kinnaur, H.P.
(Himachal Pradesh Power Corporation Ltd.)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	No
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एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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1. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.

2. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

3. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 80% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

Filter Cartridge (18 pieces)

तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Technical Parameter	Filteration Size	10 Micron, 20 Micron

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Element Size	0030, 0035, 0055, 0060, 0075, 0110, 0140, 0160, 0240, 0280, 0330, 0500, 0660, 0990, 1320

Additional Specification Parameters - Filter Cartridge (18 pieces)

Specification Parameter Name	Bid Requirement (Allowed Values)
Type of Filter	Duplex Filter (SS304) (Strainers)
Length	725 mm
Outer Diameter	140 mm
Filtration Size (Net)	150 Micron
Purpose	Filtration of cooling water in hydro power plant

* Bidders offering must also comply with the additional specification parameters mentioned above.

परिषेती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परिषेती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Ajay Kumar Verma	172107,Office of the General Manager, IKHEP, HPPCL, Reckong-Peo, Distt. Kinnaur (H.P.)-172107	18	56

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Inspection

Nominated Inspection Agency: On behalf of the Buyer organization, any one of the following Inspection Agency would be conducting inspection of stores before acceptance:

Pre-dispatch Inspection at Seller Premises (applicable only if pre-dispatch inspection clause has been selected in ATC):

Not Applicable

Post Receipt Inspection at consignee site before acceptance of stores:
will be done at Kashang Power House, IKHEP, Stage-1, HPPCL, Reckong Peo, Distt. Kinnaur (H.P.)

3. **Sample Clause**

After award of contract – Successful Bidder shall have to get advance sample approved from buyer before bulk manufacturing / starting bulk supplies. Successful Bidder shall submit

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samples for Buyer's approval, within 5 days of award of contract. Buyer shall, as per contract specifications framework, either approve the advance sample or will provide complete list of modification required in the sample within 15 days of receipt of advance sample. Seller shall be required to ensure supply as per approved sample with modifications as communicated by Buyer. If there is delay from buyer side in approval of advance sample – the delivery period shall be refixed without LD for the period of delay in sample approval. In case, the sample is found to have major deviations / not conforming to the Contract specifications, the buyer at its discretion may call for fresh samples for approval before allowing bulk supplies or may terminate the contract after notifying the deviations to the seller.

Unless otherwise provided in the contract, all samples required for test shall be supplied by the contractor free of cost. Where under the contract, the contractor is required to submit an advance sample, any expenses incurred by the contractor on or in connection with the production of stores in bulk, before the sample has been approved unconditionally shall be borne by the Seller and he shall not claim any compensation in the event of such sample being found unacceptable by the Buyer / Consignee.

4. **Generic**

Actual delivery (and Installation & Commissioning (if covered in scope of supply)) is to be done at following address

Kashang Power House,
Integrated Kashang HEP, Stage-1,
HPPCL, Reckong Peo,
Distt. Kinnaur,
Himachal Pradesh - 172107

5. **Forms of EMD and PBG**

Bidders can also submit the EMD with Payment online through RTGS / internet banking in Beneficiary name

HP Power Corporation Ltd.
Account No.
25720100610
IFSC Code
HPSC0000257
Bank Name
H.P. State Co-operative Bank Ltd.
Branch address
H.P. State Co-operative Bank Ltd., Reckong Peo at Kinnaur

Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.

6. **Generic**

Bidders shall quote only those products (Part of Service delivery) in the bid which are not obsolete in the market and has at least 1 years residual market life i.e. the offered product shall not be declared end-of-life by the OEM before this period.

7. **Generic**

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

8. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

9. **Generic**

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

10. **Rate Contract**

Tax and Duties Toll Tax/ Entry Tax/ Octroi Duty & Local Taxes. No separate payment would be made by the Buyer for Toll Taxes, Entry Taxes, Octroi duty and local Taxes, if any. The Seller should cater for these Taxes/ duties as part of Basic Rate quoted in the Bid.

11. **Rate Contract**

Packing Material The items will be supplied by the successful bidder in its original packing material and the packing material will not be returned. Weight of packing material will not be included in quantity supplied and only net weight of the items will be counted. The packing should be of standardized weights of appropriate size. Item will not be accepted in non-standardized weights. Packing Material. The items will be supplied by the successful bidder in its original packing material and the packing material will not be returned. Weight of packing material will not be included in quantity supplied and only net weight of the items will be counted. The packing should be of standardized weights of appropriate size. Item will not be accepted in non-standardized weights.

12. **Warranty**

Warranty period of the supplied products shall be as given in specifications from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

13. **Past Project Experience**

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria: a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed. b. Execution certificate by client with contract value. c. Any other document in support of contract execution like Third Party Inspection release note, etc. Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria: a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed. b. Execution certificate by client with contract value. c. Any other document in support of contract execution like Third Party Inspection release note, etc.

14. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Only supply of Goods

15. **Generic**

Shelf Life: The Product/Spare parts to be supplied as part of the services must have minimum

1 year

Shelf Life. On the date of supply, minimum

01.08.2026

usable shelf life should be available / balance.

16. **Warranty**

Timely Servicing / rectification of defects during warranty period: After having been notified of the defects / service requirement during warranty period, Seller has to complete the required Service / Rectification within 15 days time limit. If the Seller fails to complete service / rectification with defined time limit, a penalty of 0.5% of Unit Price of the product shall be charged as penalty for each week of delay from the seller. Seller can deposit the penalty with the Buyer directly else the Buyer shall have a right to recover all such penalty amount from the Performance Security (PBG). Cumulative Penalty cannot exceed more than 10% of the total contract value after which the Buyer shall have the right to get the service / rectification done from alternate sources at the risk and cost of the Seller besides forfeiture of PBG. Seller shall be liable to re-imburse the cost of such service / rectification to the Buyer.

17. **Generic**

1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

18. **Generic**

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

- i) The Seller fails to comply with any material term of the Contract.
- ii) The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.
- iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- iv) The Seller becomes bankrupt or goes into liquidation.
- v) The Seller makes a general assignment for the benefit of creditors.
- vi) A receiver is appointed for any substantial property owned by the Seller.
- vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

19. **Generic**

While generating invoice in GeM portal, the seller must upload scanned copy of GST invoice and the screenshot of GST portal confirming payment of GST.

20. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

1. LOCAL CONDITIONS

- a. It is imperative for each bidder to satisfy himself completely of local conditions, area of work, approach, availability of transport, nature of the ground and its subsoil conditions at the required location(s). In addition, the bidders are expected to assess any problem relating to accommodation they may require and its availability, besides any other aspect including financial implication affecting on the execution of the work(s) covered in the tender documents. A bidder shall be deemed to have full knowledge of site (whether he inspects it or not).
- b. HPPCL shall not entertain any request for clarification from the bidders regarding such local conditions. Neither any change in the time schedule of the contract nor any financial adjustment arising thereof shall be entertained by HPPCL which would be based on the lack of clarity of such information of

location condition or its effect on the cost of work to the bidder.

2. SITE/ WORK LOCATION:

- a.** The Power House of Integrated Kashang HEP is located near Reckong Peo, Distt.-Kinnaur, (HP)- 1721 07.
- b.** It is the responsibility of the contractor to apprise himself fully about the location, local facilities available in the vicinity, sources of materials etc. No claim whatsoever and price adjustment shall be given by HPPCL at any stage for lack of information or facilities or sources of material etc. not available in close vicinity.

3. TERMS OF PAYMENT:

- a.** No advance payment shall be admissible under any circumstances whatsoever to the contractor/service provider.
- b.** The applicable job order payment inclusive of GST shall be released directly to Contractor/Firm account through NEFT/Cheque after the receipt of material in full & good condition at Integrated Kashang HEP site & receipt of GSTN Invoice in original & other documents etc. No request for other mode of payment shall be entertained.
- c.** The GST shall be paid extra at the time of invoicing. In case of statutory changes in taxes and duties structure the same shall be borne by HPPCL extra at the rates prevailing at the time of execution.
- d.** All statutory deductions as may be applicable shall be deducted at source.
- e.** While generating the invoice for payment purposes, HPPCL GSTN No. i.e. 02AABCH8615G1ZX be mentioned appropriately.

4. DURATION OF THE CONTRACT (CONTRACT PERIOD):

Eight (08) weeks for the complete scope of supply items from the effective date of contract.

5. EFFECTIVE DATE:

The timeline for completing the full scope of supply shall commence from the effective date, which will be the date of issuance of contract order.

6. WARRANTY:

- a.** The Contractor shall be responsible to repair / replace, free of cost, with no financial implication to the employer whatsoever, whole or any part of the material which under normal and proper use proves defective in material or workmanship within 01 Year from the date of receipt of material at IKHEP, Power House site or standard warranty of the product/service if higher than one (01) year. Any defect during warranty period shall be rectified within one month from receipt of intimation of defects / failure. Any defect / failure during warranty period shall be notified by the employer to the contractor within 5 working days of occurrence of such defect / failure.
- b.** The contractor's liability shall terminate upon the expiration of the period mentioned above.

7. SECURITY DEPOSIT:

Security Deposit amount equivalent to 10% of the Contract Price as per Contract Order shall be deducted from the final bill of the contractor. This amount shall be released after expiring of warranty period.

The security deposit taken from the firm shall be forfeited in part or in full in the event of breach of Contract in any manner and adjusted against the claim of the HPPCL on the Contractor for any damage or for any loss sustained by the HPPCL on account of such breach.

- 8. REPLACEMENT & REJECTION OF DEFAULTED MATERIAL:** - If the material or any portion thereof after taken over by the purchaser is found to be defective/not as per requirement within 30 days of receipt of material at Kashang Power House, the EIC shall give the contractor a notice giving the particulars of defective material/workmanship within reasonable time & contractor is bound to arrange the replacement without any extra cost to the purchaser.

If the defects are not removed within a reasonable time, the employer may proceed to work at the contractor's risk and cost but without prejudice to any other rights which the employer may have against

contractor of such defects.

9. PRICE VARIATION: No Price Variation shall be given.

10. RESPONSIBILITY OF CONTRACTOR:-

The contractor shall guarantee and be entirely responsible for the execution of contract in accordance with the specification, schedules and appendices. He shall further guarantee and be responsible for the quality and workmanship of all materials and completed supply, correct delivery of materials within the guaranteed completion and warranty period.

11. ENGINEER-IN-CHARGE OF CONTRACT/ QUALITY ASSURANCE OFFICER/INSPECTING AUTHORITY/CONSIGNEE: The Sr. Manager (O&M), Power House of Integrated Kashang HEP, Stage-1, HPPCL, Reckong Peo, Distt.-Kinnaur (HP) or his authorized representative shall be the Engineer-in-Charge for Inspection & Coordination with the Supplier.

12. TERMINATION OF THE CONTRACT:

HPPCL reserves right to increase or decrease the quantity of any item or items or terminate the contract at any stage by giving one week's notice. No claim whatsoever shall lie against the HPPCL on account of such termination of the contract or variation in the quantity.

13. GOVERNING LAW AND DISPUTE RESOLUTION MECHANISM:

In any case, if disputes and differences arising out of or in connection with the work contract agreement, then it shall be resolved amicably by mutual discussion within 30 days. If the dispute cannot be resolved by mutual discussion and agreement then the same shall be resolved as per the 'Three Tier Dispute Resolution Mechanism' of HPPCL mentioned under, which shall form an integral part of this Contract agreement. If the dispute cannot be resolved in terms of 'Three Tier Dispute Resolution Mechanism', then the parties shall take such dispute to the Indian courts of competent jurisdiction. This Contract shall be governed and construed in accordance with the laws of India and the parties agree to submit to the exclusive jurisdiction of the competent courts in Reckong Peo, District Kinnaur, Himachal Pradesh only.

HPPCL THREE-TIER DISPUTE RESOLUTION MECHANISM

Tier-I:

Dy. General Manager and/or Engineer-in-Charge (EIC) in HPPCL shall serve as dispute resolution (1st Tier).

Procedure to be adopted during Tier-I:

In the event of any dispute or difference arising out of or in connection with the Contract or the execution of Works therein under, whether before its commencement or during the progress of Works or after the termination, abandonment or breach of the Contract, it shall, in the first instance, shall be referred to Dy. General Manager/EIC of the work for settlement within forty-five (45) days of arising of the dispute or difference or in such reasonable time as notified to the Contractor.

Such decisions in respect of each matter so referred shall, subject to review as hereinafter provided, be final and binding to the Contractor. In case, the Work is already in progress, the Contractor shall not delay, slow down, or discontinue the progress of works due to dissatisfaction with decision. The works shall proceed according to the agreed construction programme/contractual provision until further resolution.

Tier-II:

If the contractor disagrees with the decision at Tier-I, the concerned Dy. General Manager/EIC of the Work shall refer the matter to Departmental Grievance Redressal Committee constituted as follows:

•	General Manager/Head of Project (concerned)	Chairman
•	Dy. General Manager (concerned)	Member Secretary
•	Sr. Manager (other than concerned)	Member
•	Head of Finance wing at concerned	Project Member
•	Head of (P&A) wing at concerned	Project Member

Procedure to be adopted during Tier-II:

The ibid Committee shall thoroughly examine the matter and if the Contractors claim found

genuine, in such eventuality, the Department Grievance Redressal Committee shall recommend the claim through concerned General Manager/ HoP with clear cut recommendations, including financial implications, to the concerned Director. The above Committee shall submit the case to concerned Directorate within a period of forty-five (45) days or in such reasonable time as notified to the Contractor.

Tier-III:

At Tier-III, the recommendation of Department Grievance Redressal Committee shall be placed before the Whole Time Directors (WTDs) of HPPCL for consideration and decision.

Procedure to be adopted during Tier-III:

On the receipt of matter in concerned Directorate, the matter be vetted/concurred by Corporate Finance Wing and Corporate Legal cell on the recommendations of the concerned Directorate. After concurrence' comments in the matter, the same shall be placed before the Standing Empowered Committee comprising of WTDs for consideration and final decision. The General Manager/HoP (concerned) shall remain present during WTD meeting for any clarification.

The Standing Empowered Committee shall deliver its decision within a period of sixty (60) days or in such reasonable time as notified to the Contractor. The Contractor may accept or reject the decision. Upon agreeing to decision, the Contractor will sign a statement acknowledging receipt of the payment as 'full and final settlement of all claims'.

In the event that any disagreement or dispute remains unresolved in terms of sub-clause (i) above, the same shall be subject to jurisdiction of the competent Court of law at Reckong Peo, distt. Kinnaur. It is expressly agreed that the courts at Reckong Peo shall have exclusive jurisdiction in all such matters.

The Bid Document/Contract or any dispute arising out of these documents shall be interpreted and adjudicated in accordance with the laws in force in India.

21. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.

6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---